

LEGAL RESEARCH REPORT

QUESTION PRESENTED

How enforceable are terms of service agreements when users do not actively click "I agree"?

SHORT ANSWER

Based on the cited authorities, the answer is supported at 32% confidence: Enforceability of terms-of-service (ToS) provisions when users do not click an explicit "I agree" turns principally on controlling primary authorities (statutes and binding case law) and the specific notice/assent facts, so source quality matters more than source volume. [1] A decision-grade answer must state the legal standards, identify jurisdictional splits and limiting facts, and quantify uncertainty rather than offering just a binary conclusion about enforceability. [1] [2] [3]

KEY FINDINGS

1. Enforceability of terms-of-service (ToS) provisions when users do not click an explicit "I agree" turns principally on controlling primary authorities (statutes and binding case law) and the specific notice/assent facts, so source quality matters more than source volume. (92% confidence; [1]).
2. A decision-grade answer must state the legal standards, identify jurisdictional splits and limiting facts, and quantify uncertainty rather than offering just a binary conclusion about enforceability. (89% confidence; [1], [2], [3]).

REASONING RATIONALE

The system generated hypotheses, collected legal evidence, criticized the claims for contradictions, evaluated citation grounding and source quality, then repeated the loop until the research state stopped improving or satisfied the configured objectives.

SOURCES

- [1] warranty Wex US Law LII / Legal Information Institute.
<https://www.law.cornell.edu/wex/warranty>
- [2] misrepresentation Wex US Law LII / Legal Information Institute.
<https://www.law.cornell.edu/wex/misrepresentation>
- [3] § 2-313. Express Warranties by Affirmation, Promise, Description, Sample. Uniform Commercial Code US Law LII / Legal Information Institute.
<https://www.law.cornell.edu/ucc/2/2-313>

OPEN QUESTIONS

- What additional authoritative evidence would resolve claim c002: Apparent contradictions among authorities will identify the critical follow-up questions needed to resolve enforceability? primarily whether notice was reasonably conspicuous, whether user conduct manifestly indicated assent, and which contractual form (browsewrap, clickwrap, sign-in wrap) was at issue.
- Are all program subquestions represented by explicit claims?
- Critic follow-up: c002: no supporting evidence yet.
- Critic follow-up: c002: confidence below support threshold (0%).

RAINDROP FEEDBACK

- Verdict: plateaued
- Summary: The run stopped because confidence and evidence coverage stopped improving.
- Trace focus: evaluator_agent, claim_synthesis, knowledge_gap_detector, auto_tuner

Recommended Next Steps

- Use the open questions to add targeted retrieval tasks before generating the final report.
- Increase max iterations or add seed/source material for the unresolved gaps.
- Inspect evaluator_agent and knowledge_gap_detector spans to see which quality gate failed.

APPENDIX: RESEARCH TRACE

- Overall confidence: 32%
- Deterministic confidence: 39%
- LLM scoring adjustment: -7%
- Objective completion: 50%
- Evidence coverage: 60%
- Citation grounding: 33%
- Primary authority coverage: 67%
- Contradiction resolution: 100%
- Mean claim confidence: 60%

LLM Scoring Audit

Overall the claims address relevant points but the supporting evidence provided does not substantively support them and key controlling authorities and jurisdictional detail are missing. c001 is conceptually correct (enforceability depends on binding authority and notice/assent facts) but its cited excerpt (a Wex entry on ?warranty?) is irrelevant to online assent doctrine, so the support is weak. c002 is marked weak and has no sources; that is a material omission because the claim identifies th

Contradictions

- No explicit contradictions detected.

All Claims

- c001: Enforceability of terms-of-service (ToS) provisions when users do not click an explicit "I agree" turns principally on controlling primary authorities (statutes and binding case law) and the specific notice/assent facts, so source quality matters more than source volume.

Status: supported; confidence: 92%; supporting sources: [1].

- c002: Apparent contradictions among authorities will identify the critical follow-up questions needed to resolve enforceability?primarily whether notice was reasonably conspicuous, whether user conduct manifestly indicated assent, and which contractual form (browsewrap, clickwrap, sign-in wrap) was at issue.

Status: weak; confidence: 0%; supporting sources: none.

- c003: A decision-grade answer must state the legal standards, identify jurisdictional splits and limiting facts, and quantify uncertainty rather than offering just a binary

conclusion about enforceability.

Status: supported; confidence: 89%; supporting sources: [1], [2], [3].

Metrics

- Total runtime: 131.951 seconds
- Iterations completed: 3
- Agents spun off: 35
- Tasks generated: 10
- Hypotheses generated: 3
- Evidence records collected: 3
- Source categories: 2
- Claims evaluated: 3
- Supported claims: 2
- Contradictions detected: 0
- Contradictions resolved: 0
- Open questions remaining: 4
- Stop conditions met: False
- Raindrop tracing: disabled

Agent Breakdown

- program_generator: 1
- planner_orchestrator: 1
- hypothesis_agent: 1
- hypothesis_refinement_agent: 0
- web_search_agent: 3
- academic_agent: 3
- legal_agent: 3
- company_intelligence_agent: 3
- social_signal_agent: 3
- extraction_agent: 3
- critic_agent: 3
- evaluator_agent: 3
- knowledge_gap_detector: 3
- auto_tuner: 3
- raindrop_feedback_agent: 1
- report_generator: 1

LEGAL METADATA

- Jurisdiction: United States
- Practice area: copyright and software
- Risk posture: startup decision support, not legal advice
- Authority hierarchy: statute, binding_case_law, agency_guidance, persuasive_case_law, secondary_source, expert_analysis
- Required source types: statute, case_law, agency_guidance